

**HIGH COURT OF TRIPURA
AGARTALA**
Cont.Cas(C)No.154 of 2019

For Petitioner(s) : Mr. D.K. Biswas, Adv.
For Respondent(s) : Mr. A. Bhowmik, Adv.

HON'BLE MR. JUSTICE S. TALAPATRA

Order

03/03/2020

Mr. A. Bhowmik, learned counsel appearing for the respondent has submitted that by the memorandum under No.F.6(1)-FIN(PC)/2008 dated 26.08.2019, having particular reference to Paras 2 & 3 of the said memorandum, the anomaly that has emerged in the case of the petitioner will stand removed, if those clarifications are applied.

Mr. Bhowmik, learned counsel has having referred to Para-6 of the supplementary-affidavit filed on 02.03.2020 further submitted that the said memorandum dated 26.08.2019 [Annexure-1 to the reply filed by the respondent] can be applied to the case of the petitioner and accordingly, the appropriate authority, the High Court of Tripura has been communicated. For purpose of reference, the entire text of the said memorandum dated 26.08.2019 is reproduced hereunder :

**"GOVERNMENT OF TRIPURA
DEPARTMENT OF FINANCE

No.F.6(1)-FIN(PC)/2008

Dated, Agartala, the 26th August, 2019

MEMORANDUM

Subject :- Clarification regarding fixation of pay of Government employees promoted to higher posts with higher pay structure on or after 01.01.2006 in terms of TSCS(Revised Pay) Rules 2009.

The undersigned is directed to refer to the provisions contained in Rule 8 of TSCS (Revised Pay) Rules 2009 which states that the pay of direct recruits to a particular posts carrying a specific Grade Pay shall be fixed on or after the 01.01.2006 at the entry level pay in the Pay Band as indicated in Part-E read with Part-D of Schedule-I of this Rules. In the

case of promotion on or after 01.01.2006, if the concerned employee has opted for revised pay in terms of TSCS(Revised Pay) Rules 2009 in his lower post, then his pay in the higher post due to promotion shall be fixed under the provisions of Rule 12 of TSCS (Revised Pay) Rules 2009.

2. Several Departments have made references to Finance Department seeking clarification on fixation of pay of those Government employees, who having opted to refix their pay in the lower post in terms of TSCS(Revised Pay) Rules 2009, subsequently gets promoted to higher post during the period of effect of TSCS (Revised Pay) Rules, 2009 and receives lower pay then the entry pay in the revised pay structure for direct recruits appointed on or after 01.01.2006 as indicated in Part-B read with Part-D of Schedule-I of TSCS (Revised Pay) Rules, 2009.

3. The matter has been examined in Finance Department and after careful examination, it has been clarified that the pay of those Government employees who have been drawing revised pay in the lower post in terms of TSCS (Revised Pay) Rules, 2009 and subsequently gets promoted to higher post during the period under TSCS (Revised Pay) Rules, 2009 shall not receive pay lower than the entry pay as indicated in Part-E read with Part-D of Schedule-I of TSCS (Revised Pay) Rules, 2009. An illustration to that effect is given below :-

Illustration :-

Suppose a Government employee in drawing basic pay of Rs.143030/- (Band pay-Rs.11430/- + Grade Pay-Rs.2600/-) per month in pay structure of PB-3 (Rs.9570-30000/- + Grade Pay – Rs.2600/-) in his lower post. He/She was appointed to a higher post on promotion in the pay structure of PB-3 (Rs.9570-30000/- + Grade Pay –Rs.3500/-) on 26.07.2011. He/She opts to get his pay fixed in the higher pay of the promotion post directly on the date of promotion i.e.26.07.2011. His pay will be fixed on promotion as follows :

1.	Pay Band & Grade Pay applicable to the lower post	PB-3 (Rs.9570-30000/- + Grade Pay-Rs.2600/-)
2.	Basic Pay drawn in the lower post	Rs.14030/- (Band Pay-Rs.11430 + Grade Pay-Rs.2600/-)
3.	Pay Band & Grade Pay applicable to the promotion	PB-3 (Rs.9570-30000/- + Grade Pay – Rs.3500/-)
4.	Basic Pay on 26.07.2011 due to promotion as per Rule 12 of TSCS (ROP) Rules, 2009	Rs.15350/- (Rs.11430 + 3% of Rs.14030 i.e., 420 + GP-Rs.3500/-)
5.	Entry Pay in PB-3 against Grade Pay-Rs.3500/- as indicated at Part-E read with Part-D of TSCS (Revised Pay) Rules, 2009	Rs.16470/-
6.	Pay as on 26.07.2011 due to promotion	Rs.16470/-

4. In light of the above, the undersigned is directed to inform that if the pay of a Government employee who has been drawing revised pay in the lower post in terms of TSCS (Revised Pay) Rules, 2009 and who has subsequently been appointed to a higher post on promotion during the period under TSCS (Revised Pay) Rules, 2009, happens to be lower than the Entry pay as mentioned at Part-E read with Part-D of Schedule-I of TSCS (Revised Pay) Rules, 2009 then the revised pay due to promotion shall not be less than the said Entry pay of the promotion post. However, this instruction shall not affect those cases where the fixation of pay due to promotion is higher than the entry pay of the promotion post. This shall also not be applicable to cases where a Government employee is already drawing higher pay of the promotion post, if any, due to entitlement of Assured Career Progression Scheme.

5. The undersigned is further directed to inform that the above benefit of revised pay shall be allowed notionally, even for the purpose of revision of pay in respect of TSCS (Revised Pay) Rules, 2017 and its amendment Actual financial benefit of higher pay scale may be allowed to eligible cases from 1st September, 2019. Cases where the Government employee had proceeded on retirement shall not be reopened. For any posts that are not covered under the provisions of TSCS(Revised Pay) Rules, 2009 cases for relief in terms of the instant Memorandum may not be considered.

not illegible

(A. Dewanjee)
Deputy Secretary to the
Government of Tripura,
Finance Department "

Mr. D.K. Biswas, learned counsel appearing for the petitioner has submitted that the said memorandum dated 26.08.2019 can be applied by the respondent and this proceeding may be closed.

Accordingly, the proceeding stands closed. The notice that has been issued against the respondent stands discharged.

JUDGE

